

Tentative Rulings and Resolution Review Hearings
April 21, 2025
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

DELANEY VS. MEJAS ALL IN CONSTRUCTION

Case Number: 25CV-0207297

Tentative Ruling on Petition to Release Mechanic’s Lien: Petitioner “Jessica Delaney of Shasta Redevelopment, LLC” seeks an order releasing a mechanic’s lien on real property commonly known as 2620 Irwin Road, Redding, CA 96002. The Petition is defective in multiple respects.

As a threshold issue, Petitioner brings this action as “Jessica Delaney of Shasta Redevelopment, LLC.” This is improper. “A corporation has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. (§ 17; Corp.Code, §§ 105, 207.) However, under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” *CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal. App. 4th 1141, 1145. The owner of the property, Shasta Redevelopment, LLC, must be represented by a licensed attorney to proceed before the court.

Additionally, the matter is not properly noticed. Civil Code § 8480 et seq. establishes the procedural requirements for an owner of property to petition a court for an order releasing a mechanic’s lien when the claimant has not timely filed an action to enforce the lien. Petitioner is required to serve a copy of the petition and notice of hearing on the claimant at least 15 days before the hearing, and “[s]ervice shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108.” Civil Code § 8486(b). Here, proof of service is on two individuals not named in the Petition. There is no proof of service on Mejas All In Construction. No Notice of Hearing has been filed or served. The proof of service indicates service by US mail only.

Finally, Civil Code § 8484 requires that the petition be verified and contain the following information:

- a) The date of recordation of the claim of lien. A certified copy of the claim of lien attached to the petition.
- b) The county in which the claim of lien is recorded.
- c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- d) The legal description of the property subject to the claim of lien.
- e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- g) Whether an action to enforce the lien is pending.
- h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

Petitioner's Verified Petition does not satisfy any of the requirements set forth in Civil Code § 8484. The Petition is **DENIED** without prejudice. No proposed order has been lodged as required by Local Rule 5.17(D). Petitioner shall prepare the order.

GUERRA VS. KNAUF INSULATION, INC.

Case Number: 24CV-0206404

Tentative Ruling on Demurrer or in the Alternative Motion to Strike: This is a PAGA action arising out of Plaintiff's employment with Knauf Insulation, Inc. Defendant demurs, or in the Alternative moves to strike portions of Plaintiff's Complaint. The operative complaint is the Second Amended Complaint filed February 10, 2025. Plaintiff opposes the motion.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Scott Witlin indicates compliance with the requirements of the CCP § 430.41.

Request for Judicial Notice: Pursuant to Evidence Code sections 451 and 452, the Defendant requests the Court take judicial notice of: 1) the Collective Bargaining Agreement between Knauf and Teamsters Local 137, 2) Second Amended Complaint in related case, currently pending in Eastern District, 3) Original Complaint filed in related case, currently pending in Eastern District, 4) California Industrial Welfare Commission's Wage Order No. 1-2201, 5) California Minimum Wage Notice in Effect January 1, 2021 – January 1, 2024. The request is denied as to the Collective Bargaining Agreement and granted as to the remainder pursuant to Evid. Code 452(c) and (d).

Merits: A demurrer should be sustained if "there is another action pending between the same parties on the same cause of action." CCP § 430.10(c). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a

demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Here, Defendant's Notice of Motion indicates they are moving for an order dismissing Plaintiff's claim for meal break violations and PAGA claim pursuant to California Code of Civil Procedure, Rule 12(b), or, in the alternative, strike portions of Plaintiff's Complaint. The Notice does not indicate which portions, in violation of CRC 3.1322. There is no CCP Rule 12(b). The moving papers indicate that Defendant moves to stay the instant action pursuant to CCP § 430.10(c). Defendant argues that Case No. 2:24-cv-02751-TLN-DMC (the "related case"), currently pending in the Eastern District of California is "another action pending between the same parties on the same cause of action," which requires this Court to stay the instant PAGA action.

The Court takes judicial notice that the related case is a class action. It does not assert any PAGA claims. California case law is clear that a class action and a PAGA action involve different claims for different harms, and different parties. *Howitson v. Evans Hotels, LLC* (2022) 81 Cal. App. 5th 475, 482. California courts have repeatedly held that applying claim preclusion under these circumstances would undermine the Legislature's intent. *See, e.g., Id.* at 492. The demurrer on the grounds of CCP § 430.10(c) is **OVERRULED**.

The moving papers next argue that, should the Court decide not to stay the action, it must dismiss Plaintiff's meal period claims under the principals of federal labor law preemption. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b). Defendant fails to identify which portions of the Second Amended Complaint it seeks to strike. The Court infers Defendant seeks to strike paragraph 17. This argument is based on Defendant's reading of a Collective Bargaining Agreement between Defendant and Plaintiff's representative Teamsters Local 137. The Court declines to take judicial notice of the CBA, or to interpret its meaning or applicability at the pleading stage. The motion to strike is **DENIED**.

Defendant's Demurrer is OVERRULED, the alternative Motion to Strike is DENIED. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Relief under CCP § 473(b): This is a lemon law action concerning a 2020 Honda Pilot. Plaintiffs seek relief, pursuant to CCP § 473(b), from this Court's March 3, 2025 Order denying the Motion to Compel the Deposition of Defendant's Person Most Knowledgeable ("PMK") for all categories requested in their Second Amended PMK Deposition Notice.

Relief under 473(b) is discretionary here. "The mandatory relief provision of section 473(b) provides, as pertinent, "Notwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake,

inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting *default judgment or dismissal* entered against his or her client....” (Italics added.) In contrast, the discretionary relief provision of section 473(b) states, as relevant, “The court *may*, upon any terms as may be just, relieve a party or his or her legal representative from a *judgment, dismissal, order, or other proceeding taken against him* or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Italics added.)” *Noceti v. Whorton* (2014) 224 Cal. App. 4th 1062, 1065.

Plaintiff’s Motion to Compel Deposition originally came on for hearing on January 27, 2025. The Court’s tentative ruling was to deny the Motion for failure to meet and confer. Plaintiff appeared at the hearing and requested a continuance to permit meet and confer efforts. The Court granted that request and continued the hearing to February 24, 2025. The Court thereafter continued the hearing to March 3, 2025 on its own motion due to congested calendars. Both sides were directed to file any supplemental declarations five court days prior to the continued hearing date. Plaintiff failed to file any supplemental declaration. The matter came back on calendar for hearing on March 3, 2025. The Court’s tentative ruling was again to deny the Motion for failure to meet and confer. Plaintiff did not appear at the hearing, and the tentative ruling was adopted as the formal order of the Court. That Order detailed the basis for the Court’s decision, as follows:

A motion brought under CCP § 2025.450(a) shall be accompanied by a meet and confer declaration under CCP § 2016.040. The Declaration of Hannah Theophil indicates that one meet and confer letter was sent to Defendants on August 1, 2024, relating to the Notice of Deposition for PMK served on September 11, 2023. (Ex. 7 to Decl. Theophil.) However, the instant Motion relates to a Second Amended Notice of Deposition, served on November 15, 2024. There is no evidence of meet and confer efforts related to the Notice at issue here. Moreover, Defendants served Objections to the Second Amended Notice of Deposition on November 22, 2024. (Ex. 10 to Decl. Theophil.) In the 384-page Declaration and Exhibits filed in support of this Motion, there does not appear to be any evidence that Plaintiffs attempted to meet and confer to address Defendant’s Objections, or to determine a mutually agreeable date for deposition.

A party may move for an order compelling a deponent’s attendance and testimony, if, after service of a deposition notice, a party to the action without having served a valid objection fails to appear for examination or proceed with it. CCP 2025.450(a). Here, Defendants served objections that have not been challenged by Plaintiff. Plaintiff has not met and conferred in good faith. The Court granted a continuance from January 27, 2025 at Plaintiff’s request to permit meet and confer efforts. Plaintiff was ordered to file a supplemental declaration no later than five Court days prior to today’s hearing. Plaintiff failed to do so.

The Court did not base its ruling on Plaintiff’s failure to appear at the hearing on March 3, 2025, but rather on Plaintiff’s failure to satisfy the meet and confer requirements of CCP § 2025.450, despite the Court granting a continuance at Plaintiff’s request to permit Plaintiff to satisfy that requirement. Plaintiff’s instant Motion for Relief pursuant to 473(b) is made on the grounds that counsel failed to appear at the hearing on March 3, 2025 due to a calendaring error, constituting

attorney mistake, inadvertence, or excusable neglect. Plaintiff's failure to appear at the hearing did not affect the Court's evaluation of the merits of the Motion. The Court declines to exercise its discretion to provide relief under 473(b). The Motion is **DENIED**. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

NATIONAL COLLEGIATE STUDENT LOAN TRUST 2007-3 VS. SHEPHERD

Case Number: 24CVG-00826

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and Counsel, on March 7, 2025, for failure to timely serve as required by California Rule of Court 3.110, and for failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to serve and file the MSC statement, the Court will impose sanctions in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve in violation of CRC 3.110 and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. The May 13, 2025 trial date is **VACATED**.

PEREZ VS. MAXIMUS TREE WORKS LLC, ET AL.

Case Number: 24CV-0205260

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on March 7, 2025, to Plaintiff and Counsel for failure to timely seek entry of default/default judgment as required by California Rule of Court 3.110 and failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. Plaintiff has submitted a Declaration in response to the OSC which adequately addresses these failures. The OSC is **DISHCHARGED**. No sanctions will be imposed.

Upon review of the file, the Court notes that its August 27, 2024 Order authorizing service of process on the California Secretary of State, imposes an additional condition that has not been met. Plaintiff must file a proof of service (of summons, complaint, and the Court's August 27, 2024 Order) by mail at the addresses of attempted service set forth in the application on file. There is no proof of service on file for Defendant Saul Ruiz. The Court also notes that a First Amended Complaint was filed April 15, 2025. This matter is not at issue. The trial set for May 13, 2025 is **VACATED**. This matter is set for review regarding status of service on **Monday, June 2, 2025 at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Dallas Segall, in pro per, on February 4, 2025, for failure to appear on January 21, 2025, as ordered on November 25, 2024. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to appear and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m.**

in Department 64. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. Today's 9:00 a.m. review hearing is vacated.

IN RE: WHITE

Case Number: 25CV-0206990

Tentative Ruling on Petition for Change of Name: Petitioner Jersey Addison White seeks an order changing her name to Sigourney Jersey Addison White. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

9:00 a.m. Review Hearings

ERIC ALAN BERG AND ASSOCIATES, INC. VS. HOLZEM

Case Number: 22CVG-00333

This matter is on calendar for review regarding status of default judgment. Defendant has been defaulted but no application for entry of a default judgment has been filed. No status report has been filed. **The Plaintiff is ordered to appear to provide the Court with a status of default judgment.**

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

This matter is on calendar to reset: 1) hearing on Defendant's Motion for Summary Judgment; 2) Mandatory Settlement Conference; 3) Trial. On March 11, 2025, the Court partially granted Plaintiff's Ex Parte Application, vacating the hearing on Defendant's MSJ, as well as the review hearing for trial resetting. This action was filed March 17, 2023. The Court designates it as exempt from case disposition time standards. The Court also notes that Defendant's MSJ was filed December 31, 2024. A First Amended Complaint was filed on February 19, 2025, pursuant to the Court's order granting leave. It appears that the filing of the FAC renders Defendant's earlier-filed MSJ moot, such that it need not be reset for hearing. The parties are ordered to appear to discuss the status of the MSJ and to provide available dates for MSC and Trial.

HJELM VS. REDDING LODGE NO. 1073, BENEVOLENT AND PROTECTIVE ORDER OF ELKS OF THE UNITED STATES OF AMERICA

Case Number: 24CV-0204367

This matter is on calendar for review regarding status of settlement and/or dismissal. At the last review hearing on February 18, 2025, Defendant's counsel informed the Court that the matter had settled during mediation. No notice of settlement has been filed. No request for dismissal has been filed. An appearance is necessary on today's calendar to provide a status of settlement and/or dismissal.

HUGHES VS. SHERRELL

Case Number: 23CV-0202499

This matter is on calendar for review regarding status of settlement. This matter settled at the January 21, 2025 settlement conference. No request for dismissal has been filed. However, Defendant has filed a status statement requesting a 30 day continuance to confirm payment of settlement funds to the lien holder and to obtain a signed request for dismissal from Plaintiff. This

matter is continued to **Tuesday, May 27, 2025 at 9:00 a.m. in Department 64** for review regarding status of settlement. No appearance is necessary on today's calendar.

J.D. VS. THE GENERAL COUNCIL OF THE ASSEMBLIES OF GOD, ET AL.

Case Number: 23CV-0201767

This matter is on calendar for review regarding status and trial setting. This matter is not yet at issue. The Court is currently considering United Pentecostal Church International's Motion to Quash Service of Summons, which was taken under submission on March 3, 2025. Today's review hearing is therefore continued to **Monday, May 19, 2025 at 9:00 a.m. in Department 64** for review regarding status and trial setting. No appearance is necessary on today's calendar.

IN RE JEFFERY, ET AL.

Case Number: 23PB-0032211

This matter is on calendar for review regarding confirmation of receipt and acknowledgement of deposit. No "Receipts and Acknowledgment of Order for the Deposit of Money Into Blocked Account" has been filed for the two minors. The Court notes that the funds were ordered deposited into blocked accounts in December of 2023. The Court terminated Kayla Jeffery as Guardian Ad Litem on February 10, 2025 for failure to abide by the Court's orders. Jennifer Tescher was appointed Guardian Ad Litem on March 3, 2025. Plaintiff's counsel has filed a Declaration requesting a 180-day continuance in order to locate their client. The Court will continue this matter for 60 days. A status statement must be filed at least 5 court days prior to the continued hearing date. The status statement must detail exactly what steps counsel, and the GAL have undertaken to locate the client and minors. This matter is continued to **Monday, June 23, 2025 at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

MCCULLOUGH VS. WRIGHT TREE SERVICES, INC, ET AL.

Case Number: 23CV-0203309

This matter is on calendar for review regarding status of removal and settlement. The parties have submitted a Joint Status Report indicating this matter has settled and the parties are taking steps to implement the settlement. The parties anticipate filing a motion for preliminary approval within three weeks. This matter is continued **Monday, June 23, 2025, at 9:00 a.m. in Department 64** for review regarding status of removal and settlement. This date will be vacated if a motion of preliminary approval is filed and set for hearing. **No appearance is necessary on today's calendar.**

PHILLIPS VS. MURPHY, ET AL.

Case Number: 22CV-0201197

This matter is on calendar for review regarding status of sale of property. The Court entered Judgement for Partition by Sale on February 11, 2025. Plaintiff has filed a case management statement indicating the parties are in the process of listing the property for sale. This matter is continued to Monday, July 21, 2025 at 9:00 a.m. in Department 64. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

This matter is on calendar for review regarding status of the case. This matter was vacated at this morning's 8:30 law and motion calendar. The Court confirms the future hearing date of June 2, 2025. No appearance is necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$192,543.00 U.S. CURRENCY

Case Number: 24CV-0204880

This asset forfeiture matter is on calendar for status of default. A Petition for Forfeiture was filed April 29, 2024. Proof of service on the real party in interest is on file. No claim opposing forfeiture has been filed. A Motion for Default Judgment was filed April 15, 2025. The Court will calendar that Motion for hearing on **Monday, May 5, 2025, at 8:30 a.m. in Department 64.** No appearance is necessary on today's calendar.